

DISSENTING OPINION BY MM. ANZILOTTI AND HUBER.

1. WE, THE UNDERSIGNED, are unable to concur in the judgment delivered by the Court on August 17th, 1923, in the case of the "Wimbledon", for reasons the most important of which are hereinafter set forth. As the essential difference between our standpoint and that of the majority concerns a point which affects the interpretation of international conventions in general, we feel it to be our duty to avail ourselves of the right conferred upon us by the Statute to deliver a separate opinion.

In our opinion, the question to be decided is not whether Germany was in a position to advance, in justification of her refusal to allow the passage through the Kiel Canal of the steamship "Wimbledon", a neutral duty taking precedence over the contractual obligation in favour of the shipping of States at peace with Germany, arising out of Article 380 and the following articles. The question is rather as follows: Do the clauses of the Treaty of Versailles relating to the Kiel Canal also apply in the event of Germany's neutrality, or do they only contemplate normal circumstances, that is to say, a state of peace, without affecting the rights and duties of neutrality? The question thus stated appears to be in harmony with the submissions of the Respondent.

2. Before proceeding to present our argument, one fact which is of no importance from the standpoint adopted in the judgment, must be noted. At the time when the steamship "Wimbledon" was refused the right of passage, a state of war still prevailed between Poland and Russia, and Germany was therefore still in the position of a neutral. That this was the case is shown, apart from any considerations with regard to the external and internal situation of Germany, by the actual terms of the peace preliminaries and of article 1 of the final Peace Treaty between Poland and Russia, and more especially by the fact that an armistice forming an integral part of the Peace preliminaries under Article 13 of those preliminaries, was in force until the ratification of the final Treaty; this ratification, however, had not yet taken place at the time in question.

3. It must in the first place be observed that, for the purposes of the interpretation of contracts which take the form of international conventions, account must be taken of the complexity of interstate relations and of the fact that the contracting parties are independent political entities. Though it is true that when the wording of a treaty is clear its literal meaning must be accepted as it stands, without limitation or extension, it is equally true that the words have no value except in so far as they express an idea ; but it must not be presumed that the intention was to express an idea which leads to contradictory or impossible consequences or which, in the circumstances, must be regarded as going beyond the intention of the parties. The purely grammatical interpretation of every contract, and more especially of international treaties, must stop at this point.

In this respect, it must be remembered that international conventions and more particularly those relating to commerce and communications are generally concluded having regard to normal peace conditions. If, as the result of a war, a neutral or belligerent State is faced with the necessity of taking extraordinary measures temporarily affecting the application of such conventions in order to protect its neutrality or for the purposes of national defence, it is entitled to do so even if no express reservations are made in the convention. This right possessed by all nations, which is based on generally accepted usage, cannot lose its *raison d'être* simply because it may in some cases have been abused ; it has moreover been recognised by a clause inserted in the Barcelona conventions concluded for the purpose of giving effect to the principle of freedom of communications which was enunciated in Article 23 of the Covenant of the League of Nations.

This clause runs as follows :

“This Statute does not prescribe the rights and duties of belligerents and neutrals in time of war. The Statute shall, however, continue in force in time of war, so far as such rights and duties permit.”

The absence of a similar clause in a particular convention cannot be construed in the sense that the convention must

be applied without regard to the special requirements of a state of war or neutrality. On the contrary, the object of the clause is rather to afford a certain guarantee against possible abuses designed to restrict the application of the convention to an extent not justified by the special conditions attaching to a state of neutrality or of war.

At this point, it must be stated that a State may enter into engagements affecting its freedom of action as regards wars between third States. But engagements of this kind, having regard to the gravity of the consequences which may ensue, can never be assumed; they must always result from provisions expressly contemplating the situations arising out of a war. The right of a State to adopt the course which it considers best suited to the exigencies of its security and to the maintenance of its integrity, is so essential a right that, in case of doubt, treaty stipulations cannot be interpreted as limiting it, even though these stipulations do not conflict with such an interpretation.

This consideration applies with particular force in the case of perpetual provisions without reciprocity which affect the interests of third States.

4. The foregoing considerations could not be effective against a definite provision expressly referring to the circumstances arising out of a war. But no such provision is to be found in Part XII, Section VI of the Treaty of Versailles; on the contrary, this section taken by itself and compared with the other sections of the same part of this Treaty, or with other treaties, rather suggests an interpretation in accordance with the general principles enunciated above.

The main argument of the Applicants upon which the judgment is based, is taken from the final sentence of Article 380, according to which the Kiel Canal shall be maintained free and open to the vessels of commerce and war "of all nations at peace with Germany". It has been deduced from this that the obligation entered into by Germany is only capable of one limitation, that is to say, that Germany may refuse access to the canal to the vessels of nations with which she is at war. In all other circumstances the canal must be maintained free and open, for a state of war is expressly

referred to as well as a state of peace, since the article contemplates the possibility of Germany being herself a belligerent.

Nevertheless, the words "nations at peace with Germany" by no means necessarily mean that States which are not at war with her are entitled to avail themselves in all possible circumstances of the provisions of Article 380 and the following Articles ; they rather mean that a state of peace is the condition upon which the application of these provisions is dependent. This condition, which is almost self-evident and is of no material importance, is very naturally inserted in a treaty, the provisions of which are connected with the reestablishment of a state of peace. It seems difficult to deduce from it any very far reaching consequences.

Moreover, Article 380 must not be considered alone but in connection with the other provisions of the same section. It will then be seen that this Article, the first of the section, lays down the general rule which is supplemented and limited in the following articles. But it is clear that these Articles only lay down rules for passage through the canal in so far as ordinary peace time traffic is concerned. This applies more particularly with regard to paragraph 2 of Article 381, according to which Germany may place certain impediments upon the movement of vessels. None of these impediments relate to the measures which Germany might take in the capacity of a belligerent or neutral power, so that the alternative has to be faced of acknowledging either that Germany is not entitled in this capacity to take any special measures, or that in this respect her freedom of action has not been limited by the Treaty. It appears to us, however, difficult to believe that there was an intention to prohibit Germany from taking the measures necessary to protect the paramount interests which may be at stake for her in the event of war or neutrality, whilst her right to take the necessary measures to ensure respect for her police, customs and sanitary regulations etc. that is to say, to protect relatively unimportant interests was formally recognised.

5. A comparison between article 380 to 386 and Section II of the same part of the Treaty, relating to navigation on the internal waterways of Germany, clearly shows that these

articles, though they occupy a place apart in the Treaty and possess characteristics of their own, much resemble the provisions of that section. And whereas the differences relate mainly to the duration of the obligations undertaken by Germany and to the beneficiaries of these obligations, the general rule laid down in para. 2 of Article 381 is simply a word for word reproduction of the rule laid down in paragraph 4 of Article 327 ; moreover, Section II like Section VI, contains no provision expressly dealing with a state of war or neutrality. It seems, however, hardly possible to suppose that, because Germany has undertaken to allow to the Allied and Associated Powers freedom of transit by her navigable waterways, without imposing any restrictions other than those exclusively enumerated in para. 4 of Article 327, she has lost the right of taking such measures as may be indicated by circumstances in time of war. Indeed the contrary has been explicitly recognised in the Act for the regulation of navigation on the Elbe drawn up in execution of the provisions of the Treaty of Versailles.

6. Again, if Article 380 should be taken in its strictly literal sense, it would follow that Germany as a belligerent, would have to allow the canal to be free and open to the vessels of neutral nations, since such vessels would belong to nations at peace with Germany. But an obligation of this kind is hardly conceivable without a corresponding obligation on the part of the States with which Germany was at war to respect the right of free passage through the Canal. An obligation imposed upon a State to leave open a waterway in time of war is only comprehensible in so far as such waterway is protected from the action of belligerents. This is the case as regards the Conventions relating to the Suez and Panama Canals. Moreover, whatever may be the points of semblance and of difference between these two Conventions, the fact remains that they have taken care to ensure respect for these maritime waterways in time of war, as being a matter of supreme importance. The blockade of the canal and enemy acts, either in the canal or in the adjacent waters, are expressly forbidden ; the conditions and regulations for the transit of belligerent war vessels are precisely laid down, etc. On

the other hand, no provision of this kind is to be found in the section of the Treaty of Versailles dealing with the Kiel Canal, and it is difficult to understand why it has been omitted, if it is true that the Treaty was intended to institute a régime similar to that established by the conventions relating to the Suez and Panama Canals. A comparison, therefore, between these three international agreements strikingly confirms the conclusion which we have felt obliged to draw from the interpretation of the various provisions of Section VI and from the relation between that Section and Section II of Part XII of the Treaty of Versailles. The fact that certain States which are peculiarly interested in the régime obtaining in the Baltic are not parties to the Treaty of Versailles furnishes a further argument tending in the same direction.

7. The conclusion, therefore, which appears to follow from the foregoing considerations is that the obligations undertaken by Germany to maintain the Kiel Canal free and open to vessels of nations at peace with her does not exclude her right to take the measures necessary to protect her interests as a belligerent or neutral power. This does not mean that the Canal is not also free in time of war, but this freedom will then necessarily be limited either by the exigencies of national defence, if Germany is a belligerent, or, if she is neutral, by the measures — differing according to circumstances — which she may take. This principle corresponds exactly to the rule already mentioned which was adopted in the Barcelona Conventions. The legal status of the Kiel Canal, therefore, resembles that of the internal navigable waterways of international concern. Such indeed would appear to have been the intention of the authors of the Treaty of Versailles in so far as it can be discerned from the correspondence exchanged on the subject between the two contracting parties. An indication in the same direction might also be seen in the fact that whilst Germany was, under Clause 25 of the Armistice Conditions of November 11th, 1918, debarred from pleading neutrality, this provision does not reappear either in the text of the Treaty or in the notes exchanged.

For these reasons, we are of opinion that the only question

to be decided is whether the application to the Kiel Canal of the neutrality regulations adopted by Germany was an arbitrary act calculated unnecessarily to impede traffic. Such a contention appears impossible, having regard to the statements made during the hearing by the German Agent, which show the gravity of the international and internal political situation at that time.

8. The basis of the arguments developed above would be essentially modified if we were to take as a starting point the fact that Germany herself has admitted an obligation to allow the men-of-war of belligerents to pass through the Canal, in spite of her neutrality, and consequently to fail to comply with an essential obligation of every neutral State, namely the duty of prohibiting the passage of belligerent forces through her territory. Such an admission might perhaps be deduced from a passage in the Note of the German Delegation to the Conference of Ambassadors dated April 20th, 1921, from explanations given in the speech of the German Agent before the Court, and, above all, from an argument on page 8 of the Rejoinder. These passages are, however, far from being very clear. At all events, this admission, which is based incorrectly on the extritoriality of war vessels and on the material impossibility of preventing their passage, is in complete contradiction with the conclusions of the Respondent and with his essential argument based on the alleged personal and imprescriptible rights of neutrality. It is even doubtful whether such an admission would not be contrary to Article 380 itself, since the presence of the war vessels of belligerents might seriously compromise the essential object of this provision, that is to say, the right of peaceful shipping to pass freely through the Canal.

Even if the German statements above-mentioned were more conclusive with regard to the admission in question, it would hardly be possible to consider them as having the value of an authoritative statement which it would be possible to adduce.

9. If the view be adopted that the passage through the

Kiel Canal of any ship — even if it were a “convoy” within the meaning of Article 2 of the Fifth Hague Convention of 1907 — could not infringe the neutrality of Germany, the undersigned feel called upon to make a reservation with regard to the recognition of a right to international protection for the transport of contraband. It is not disputed that present international law allows neutrals the option of suppressing or tolerating in their territory commerce in and transport of contraband, and more especially of arms and munitions. Again the transport of such commodities, even under a neutral flag, is not protected against a belligerent, and the latter is entitled, in certain conditions, to confiscate as a penalty even the neutral vessel and that part of its cargo which is not contraband. This is explained by the fact that commerce in and transport of contraband, although not necessarily affecting the neutrality of States, is regarded under the law of nations as unlawful because it assumes the guise of peaceful commerce for warlike purposes. This idea seems to acquire still greater force when considered in the light of the Covenant of the League of Nations, and more especially of its Articles 8 and 23 paragraph (d).

For this reason it seems difficult to admit a right, as between neutral States, enforceable at law to trade in and to transport contraband, whereas the same interests are unprotected as against a belligerent.

(Signed) ANZILOTTI.

(Signed) HUBER.